



PROFESSIONAL INDEMNITY POLICY SCHEDULE

Intermediary: 010/IA121 - ABDUL WAHAB NTWATWA

Policy No: 010/053/1/000007/2026/04

Class Code: 53

Type: PROFESSIONAL INDEMNITY

Insurance Period: 31 March 2026 To 30 March 2027

Insured	FAIRBANKS MEDICAL CENTRE LIMITED	UGX
Postal Address	KAMPALA - KAMPALA	Premium 3,000,000.00
Town	CENTRAL REGION	Training Levy 15,000.00
Mobile No	+256772849258	VAT Amount 542,700.00
Email	racheal@fairbankmedicalcentre.org	Stamp Duty 35,000.00
Industry	HOSPITAL	TOTAL PREMIUM 3,592,700.00
Id Number	80020003843337	
Tin No	1053370026	
Currency	UGANDA SHILLINGS	

INTERESTS COVERED

	Limit of Liability
Doctors	
Limit Any One Occurrence	20,000,000
Aggregate Limit Any One Period Of Insurance	100,000,000

EXCESS

1. Excess 10 % of Claim Amount With Min Excess of UGX. 500,000 /=

CONDITIONS

1. Premium Payment Warranty
2. Geographical Limit - Uganda
3. Jurisdiction
4. Basis of settlement
5. Cancellations Notice 30 Days

EXCLUSIONS

1. Criminal Act Exclusion
2. War and related risks and terrorism
3. Services rendered while under the influence of intoxicants or narcotics
4. Non-employee Exclusion
5. Millennium related risks
6. Liability assumed by agreement that would not otherwise attach
7. Fines, penalties, punitive or exemplary damages
8. Terrorism Exclusion



PROFESSIONAL INDEMNITY POLICY SCHEDULE

- 9. Sanctions Clause
- 10. Communicable Disease Exclusion
- 11. Pollution and Contamination Exclusion
- 12. Cyber Event Exclusion (absolute)
- 13. Gradual Environmental Impairment Exclusion

For and on behalf of AAR General Insurance
Uganda Limited

Date: 14/04/2026

Prepared by:

Morris Walusimbi

A handwritten signature in black ink, appearing to read 'Morris Walusimbi'.





PROFESSIONAL INDEMNITY INSURANCE POLICY

This Policy and the Schedule are issued to the Insured based on the information provided in the Proposal and Declaration together with any statement, report or other document and which shall form the basis of the contract of insurance between **FAIRBANKS MEDICAL CENTRE LIMITED** and **AAR GENERAL INSURANCE LIMITED** (hereinafter called the Company) and shall be deemed to be incorporated herein.

In consideration of payment of Premium, the Company agrees, subject to the conditions, memoranda, and exclusions contained or endorsed or otherwise expressed hereon, to indemnify the Insured against any claim or claims first made to the Insured for breach of professional duty as stated in the Schedule, which may be made by reason of any negligent act, error or omission whenever or wherever the same was or may have been committed or alleged to have been committed, on the part of the Insured or their predecessors in business of the said Insured, or any person at any time employed by the Insured or such predecessors in business in their professional capacity as specified in the Schedule, and notified to the Company at any time during the Period of Insurance stated in the said Schedule or of any subsequent period in respect of which the Insured shall pay the premium required for the renewal of this Policy.

Nassuna Christine

Authorized Officer

04/14/2026

Date

DEFINITIONS

1. Errors and omissions - an alternative term for professional indemnity.
2. Excess - the amount the Insured shall bear as their portion of each and every claim made.
3. Legal liability - liability attaching because of the breach of legal duty or by way of statute.
4. Libel - a published false statement that is damaging to a person's reputation; a written defamation.
5. Indemnity to the insured - reimbursing to the insured the amount of money paid to a third party
6. Negligence - omission to do something which a reasonable man would do; or doing something which a prudent and reasonable man would not do.
7. Schedule - the part of the policy that gives specific details of the insured, what the insured does, the cover given and the relevant limits, sums insured and excess etc.
8. Slander - the action or crime of making a false spoken statement damaging to a person's reputation.
9. Material Facts - every information which can influence the Company's decision in accepting the risk and determining the terms.
10. Period of Insurance - the period shown in the schedule and any subsequent period for which the insured pay and the Company accept the renewal premium.
11. Policy Year - the period between inception or renewal and the expiry date of an annual Policy.
12. Insured
Means the applicant indicated in the proposal form in whose name this policy has been issued as indicated in the schedule.
13. Warranty - a condition that must be complied with strictly, a breach of which prevents the insured from recovering under the policy.
14. Policy - written evidence of the contract between the insured and the Company.
15. Proposal
Means the application form signed by the Insured for this insurance and/or any other information given to the Company by or on behalf of the Insured.
16. Claim - demand by for indemnity or benefit under the Policy.
17. Terms - include conditions, warranties and exceptions of this Policy.
18. Defamation - The act of making false and damaging statements about someone that can harm their reputation.
19. Fraud - Means false or misleading information or intentional deception or misrepresentation to achieve unfair gain.
20. Sum Insured - Means the maximum amount of coverage provided by the policy against any insured item or items specified in the schedule.

MEMORANDA

Memo 1 - Basis of Settlement

The basis of settlement will be indemnity

Memo 2. Jurisdiction Clause

Notwithstanding anything contained herein to the contrary it is agreed that the indemnity provided shall not apply to:

- Compensation for damage in respect of Judgments delivered or obtained in the first instance otherwise than by a Court of competent jurisdiction within Uganda.
- Costs and expenses and litigation recovered by any claimant from the insured, which are not incurred in and recoverable in Uganda.

Memo 3. Geographical Scope -

The geographical scope is Uganda unless stated otherwise in the policy schedule.

EXCLUSIONS

This Insurance shall not indemnify the Insured in respect of:

- a) the amount of the excess specified in the said Schedule which shall be borne by the Insured at their own risk and the Insurers shall only be liable to indemnify the Insured in excess of such amount;
- b) libel or slander;
- c) claims brought about or contributed to by the dishonest, fraudulent, criminal, or malicious act or omission of the Insured or their predecessors in business or any person at any time employed by the Insured or their predecessors in business;
- d) loss or destruction of or damage to any property whatsoever or any loss or expense whatsoever resulting or arising there from or any consequential loss;
- e) any legal liability of whatsoever nature, directly or indirectly caused by or contributed to by or arising from ionizing radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel.

CONCLUSIONS

1. This Policy, the Schedule, Proposal form and any endorsements hereto shall be read together and any word or expression to which a specific meaning has been attached in any part of this Policy or of the Schedule shall bear such meaning wherever it may appear.
2. The liability of the Insurers hereunder shall not exceed in the aggregate for all claims under this Insurance the sum stated in the said Schedule, except that (subject to the provisions hereof) the Insurers will in addition pay the cost and expenses incurred in defence or settlement of any claim.

The Insured shall not admit liability for or settle any claim or incur any costs or expenses in connection therewith without the written consent of the Insurers, who shall be entitled to take over and conduct in the name of the Insured the defence or settlement of any claim.

Nevertheless, the Insured shall not be required to contest any legal proceedings unless an advocate (to be mutually agreed upon by the Insured and the Insurers) shall advise that such proceedings should be contested.

3. If payment in excess of the amount of indemnity available under this insurance has to be made to dispose of a claim, the Insurer's liability for the costs and expenses incurred with their

consent shall be such proportion thereof as the amount of indemnity available under this Insurance bears to the amount paid to dispose of the claim.

4. There shall be no liability hereunder in respect of any claim for which the Insured are entitled to any indemnity under any other Insurance.
5. The Insured shall as a condition precedent to their right to be indemnified under this Insurance give to the Insurers immediate notice in writing:
 - a) of any claim made against them; or
 - b) of the receipt of notice from any person of an intention to hold the Insured responsible for the results of any breach of professional duty, and shall in either case, upon request, give to the Insurers such information as the Insurers may reasonably require. If during the subsistence hereof the Insured shall become aware of any occurrence which may subsequently give rise to a claim being made against them for breach of professional duty by reason of any negligent act, error or omission and shall during the subsistence hereof give written notice to the Insurers of such occurrence then any such claim which may subsequently be made against the Insured arising out of that negligent act, error or omission shall for the purposes of this Insurance be deemed to have been made during the subsistence hereof.
6. If the Insured shall prefer any claim knowing the same to be false or fraudulent, as regards to amount or otherwise, this Insurance shall become void and all claim hereunder shall be forfeited.
7. Cancellation
 - (a) The Insurer may cancel this Policy by sending thirty days' notice via electronic mail, facsimile, registered letter or personal delivery to the Insured at his last known address or through his appointed intermediary and in such event will return to the Insured the premium paid less the pro-rata portion thereof for the time during the current Period of Insurance this Policy has been in force provided no claims have been paid or reported under this insurance.
 - b). This Policy may be cancelled at any time by the Insured by giving thirty days' notice to the Insurer provided no claim has arisen during the current Period of Insurance. The Insured shall be entitled to the difference (if any) between the Premium paid and the Premium calculated at the Insurer's short Period rates for the time during the current Period of Insurance this Policy has been in force.

SHORT PERIOD RATES

- Up to three months- 30% of annual premium
- Three to Six months- 60% of annual premium
- Six to nine months - 90% of annual Premium
- Over nine months - 100% of annual Premium

8. Complaints Procedure
 - (a) The Insurer is committed to resolving all grievances, complaints and/or disputes in a quick, fair and timely manner.
 - (b) The insured may lodge a formal grievance or complaint and the Insurer undertakes to review any such grievance or complaint and keep the Insured informed of the progress of the review within fifteen (15) days from the date of receipt of the grievance or complaint.
 - (c) In the process of review of the grievance or complaint the Insurer may request for further information, undertake further assessment or investigation to assist them in reviewing the grievance or complaint.
 - (d) The Insurer undertakes to inform the Insured of the outcome of the review within 30 days from the date of receipt of the grievance or complaint or from the receipt of further information or report from assessment or investigation.
9. Dispute Resolution
 - (a) Any dispute / Complaint between the parties to the Insurance /Health Management Contract may first be resolved amicably between the parties without the intervention of a third party and /or the dispute

/ complaint shall be escalated to the Insurance Regulatory Authority of Uganda or Ombudsman in accordance with the Insurance Act and Regulations before resorting to other mediation , arbitration and Litigation or any other dispute resolution mode .

10. Premium Payment Warranty

It is a Policy warranty that premium indicated in the schedule be paid on or before the commencement of cover as per the provisions of the Insurance Act of Uganda.

The Insurer shall only assume risk upon receipt of the full premium.

11. Premium Payment Acknowledgement

No payment in respect of any Premium shall be deemed to be payment to the Insurer unless a printed form of receipt for the same signed by an Official or duly appointed Agent of the Insurer shall have been given to the Insured.

12. Written Communication / Notice

Every notice or communication from the Insurer relating to this policy shall be sent to the Insured directly or to the Insured's duly appointed Broker by email, post or delivery to either of their registered offices.

Every notice or communication from the Insured to the Insurer relating to this policy shall be sent by email, post or a letter signed by an authorized signatory to act for and on behalf of the Insured.

13. Non completion of proposal form clause

It is noted and agreed that in case the insured having not submitted to the insurer a completed proposal form for this class of business, but having proposed to the insurer by means of a letter or risk note, wherever the within policy makes reference to proposal and declaration these terms shall be deemed to include the insured's proposal in lieu thereof

14. Compliance with conditions

The liability of the insurers is conditional on the insured complying with the terms of this policy.

15. Contribution

If at the time of any loss or damage happening to any property hereby Insured there is any other subsisting insurance or insurances whether effected by the Insured or by any other person or persons covering the same property the Insurer shall not be liable to pay or contribute more than its rateable proportion of such loss or damage.

EXTENSIVE CLAUSES

These endorsements apply only if the number set against them appears in the relevant place in the schedule.

1. Defamation Extension

The Insurer will indemnify the Insured against civil liability resulting from any Claim arising from the performance of Professional Services which is for defamation, libel or slander committed by an Insured. No cover is provided under this extension where the defamation, libel or slander is committed intentionally by an Insured.

2. Automatic Reinstatement of Loss

In consideration of the Insured undertaking to pay an additional premium at the agreed rate on the amount of loss calculated on a pro rata basis from the date of such loss to the expiry of the current period of insurance, it is agreed that in the event of loss the insurance hereunder shall be maintained in force for the full sum Insured.

3. Breach of Contract

The insurer shall pay the defence costs of the Insured resulting from any claim in connection with an alleged breach by the Insured of any express (written or oral) contract or agreement

4. Defense Costs:

Insurer will pay all costs, fees or expenses incurred with their prior consent in investigation, defense or settlement of any claim made against the Insured and the costs of representation at proceedings in respect of matters which have a direct relevance to any claim made or which may be made against the Insured, provided such claim or claims are the subject of indemnity. Such costs, fees and expenses are called Defense Costs.

5. Claims Procedure

On the happening of any event giving rise or likely to give rise to a claim under this Policy the Insured shall notify Insurer immediately the same shall have to come to his knowledge and give the Insurer notice in writing and supply all such detailed particulars and proofs as may be reasonably required. In no case shall the Insurer be liable for any loss or damage not notified to the Insurer within seven (7) days of the event.

6. Claim Reporting Clause -

In the event of non-renewal or cancellation of the Policy either by the Insurer or by the Insured, the Insurer will allow a time limit not exceeding the limitation Period as per Ugandan Limitation Act from the date of expiry or cancellation of the policy, for notification of claims which had occurred during the Policy period, provided however, all claims made during the extended reporting period shall be handled as if they were made on the last day of the expiring Policy period and are subject to the limits of indemnity and terms, conditions and exceptions of the Policy.

7. Claims Series Clause -

For purpose of this policy where a series of losses are attributable directly or indirectly to the same cause or error or omission relating to discharge of professional services all such losses shall be added together and shall be treated as one claim and such claim shall be deemed to have occurred at the point in time when the first of the claims occurred.

8. Waiver of Subrogation - Rights against Employees

If any payment is made under this policy in respect of any claim and the Insurer is thereupon subrogated to all the Insured's rights of recovery in relation thereto, the insurer shall not exercise any such rights against any employee of the Insured unless the claim has been brought about or contributed to by the intentional or willful misconduct of the employee.

9. Loss of documents-

Notwithstanding anything contained to the contrary, if during the period specified in the schedule, the Insured shall discover that any documents (as hereafter defined), the property of or entrusted to the Insured or its predecessors in business, which may now or hereafter be, or be supposed to be, in custody of the Insured, or any other person to or with whom such documents have been trusted, lodged or deposited by the Insured in the ordinary course of business, have, while within the territorial limits specified in the Policy, been destroyed or damaged, lost or mislaid and after diligent search cannot be found, the Insurer will:

- i) indemnify the Insured for legal liability as per policy limits
- ii) costs and expenses of whatever nature incurred by the Insured in replacing or restoring the documents
- iii) costs and expenses incurred with the written consent of Insurer in defense or settlement of any claim

Document

Documents means deeds, wills, agreements, maps, plans, records, books, letters, certificates, forms, documents whether printed or reproduced by any other method other than bearer bonds, coupons, bank notes, currency notes and negotiable instruments)

10. Queens' Counsel Clause

The Insured shall not be required to contest any legal proceedings unless a Queens Counsel (or lawyer to be agreed upon by the insurer and Insured) shall advise that such proceedings should be contested.

11. Dishonest or fraudulent act or omission

Shall mean an act or omission on the part of any officer or employee of the Insured which was committed with the manifest intent to cause a third party, to whom the Insured may be held legally liable, to sustain a loss

12. Retroactive Date

Retroactive date As Expiring, however, a Retroactive date of inception hereon is to apply in respect of any new or increased limits/coverage being given under this policy

13. Libel/Slander Extension

The indemnity provided by section I of this policy extends to indemnify the Insured in respect of legal liability to pay compensation and claimants costs and expenses in respect of claims made against the Insured during the period of insurance arising from any act of libel or slander committed or uttered in good faith by the Insured during the period of insurance in the course of the Business.

Provided always that:

- a) the indemnity granted by this extension shall apply solely to the Insured's in-house and trade publications
- b) the liability of the Insurer under this extension shall not exceed the limit stated in the Schedule in any one period of insurance.

14. Vicarious Liability Extension

The Insurer will indemnify the Insured against civil liability resulting from any Claim arising from performance of the Insured's Professional Services by any Agent or consultant acting on the Policyholder's behalf and for whom an Insured is legally liable.

For the avoidance of doubt the Insurer will not be liable for the Agent's own liability, or be prevented from pursuing a recovery from any Agent, nor will it be liable for any vicarious liability for any contractual liability assumed by the Agent under a contract.

15. Claim Notification

In the event of any occurrence which may give rise to a claim under this Policy the insured shall as soon as possible, but not later than seven (7) days from the date of occurrence, give notice thereof to the Insurer with full particulars. Every letter, claim, and written summons shall be notified or forwarded to the Insurer immediately on receipt. Notice shall also be given to the Insurer immediately the Insured shall have knowledge of any impending prosecution, inquest or fatal inquiry in connection with any such occurrence as aforesaid.

No claim shall be payable if the insured does not comply with the notification clause.

16. Sanction clause

The Insurer shall not be deemed to provide cover, nor shall the Insurer be liable to pay any claim or provide any benefit under this policy, to the extent that the provision of such cover, payment of such claim, or provision of such benefit would expose the Insurer to any sanction, prohibition, or restriction under United Nations resolutions or the trade or economic sanctions, laws, or regulations of the European Union, United Kingdom, United States of America, or any other applicable jurisdiction

17. Breach of Warranties

The warranties and special memoranda attached to this policy shall apply to the items concerned individually as if each were insured by a separate policy. The breach of any warranty or special memorandum shall void the policy only in respect of the items or items to which the breach applies and not in respect of the remaining items.

18. Misdescription

It is understood that his insurance shall not be prejudiced by any alteration or mis-description of occupancy provided that the insured shall notify the company of any such alteration or mis-description as soon as the same shall come to their knowledge and shall on demand pay an additional premium, if required from the date of the alteration of occupancy.

19. Insured's Duty of Care

The Insured shall take reasonable precautions to prevent loss or and damage to the insured property and shall comply with all statutory obligations if any.